MODULE 17

Privacy and Private Content Investigation

Certified Cyber Criminologist - Police / LEA Training

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What You Will Learn

Private photos posted without permission. Your two jobs: **catch the criminal, protect the victim's dignity**.

- What **private content** means - and the **two layers of consent**
- Victim-first rules: trust, dignity, and the right words
- IT Act **66E, 67, 67A** and BNS **77** - which section, when
- DPDP Act 2023 and GDPR - the privacy laws behind your work
- Getting content **removed**: grievance officers, Google's form, platform reports

She Came to the Station in Tears

A girl walks in. Someone posted her private photos online without permission. 'I do not know where these photos have reached. I am scared.'

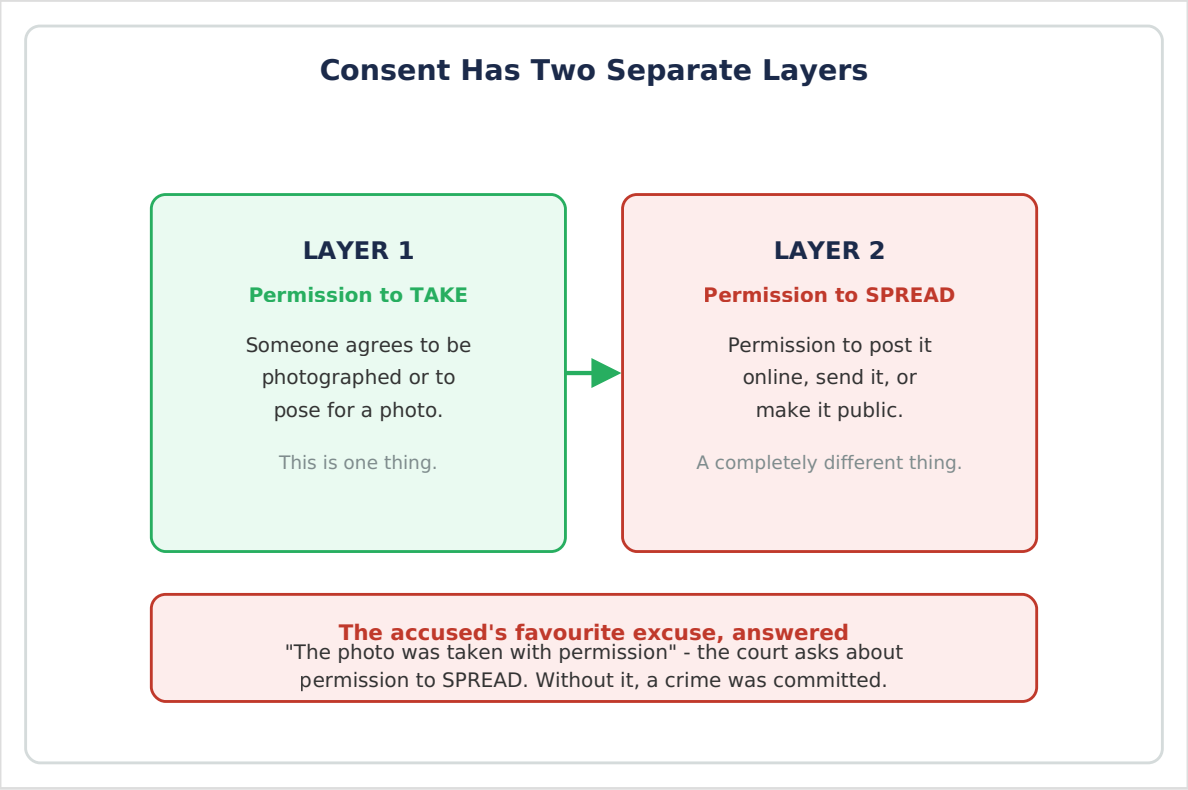
- At this moment you have **two jobs** - and the second matters more
- Job one: **catch the criminal** through evidence and law
- Job two: **protect her dignity** - her name, her story, her trust
- Remember: catching the accused is **not enough**. Getting the content removed is part of the investigation

What Private Content Means

Private content is any photo, video or information tied to a person's **private life** - shared without permission, it becomes your case.

- Private photos taken without permission; videos of private moments
- Home address, phone number, identity-linked confidential information
- The key word is **consent** - and consent has two separate layers
- Spreading it is the crime you investigate - **regardless of how it was taken**

Consent Has Two Separate Layers



- Layer 1: permission to **take**. Layer 2: permission to **spread**
- One never implies the other - **memorise this**
- The accused's excuse, answered in one line

The Investigator's First Rule: Dignity

She is scared and broken, afraid of blame. **Your first words decide whether she trusts the system.**

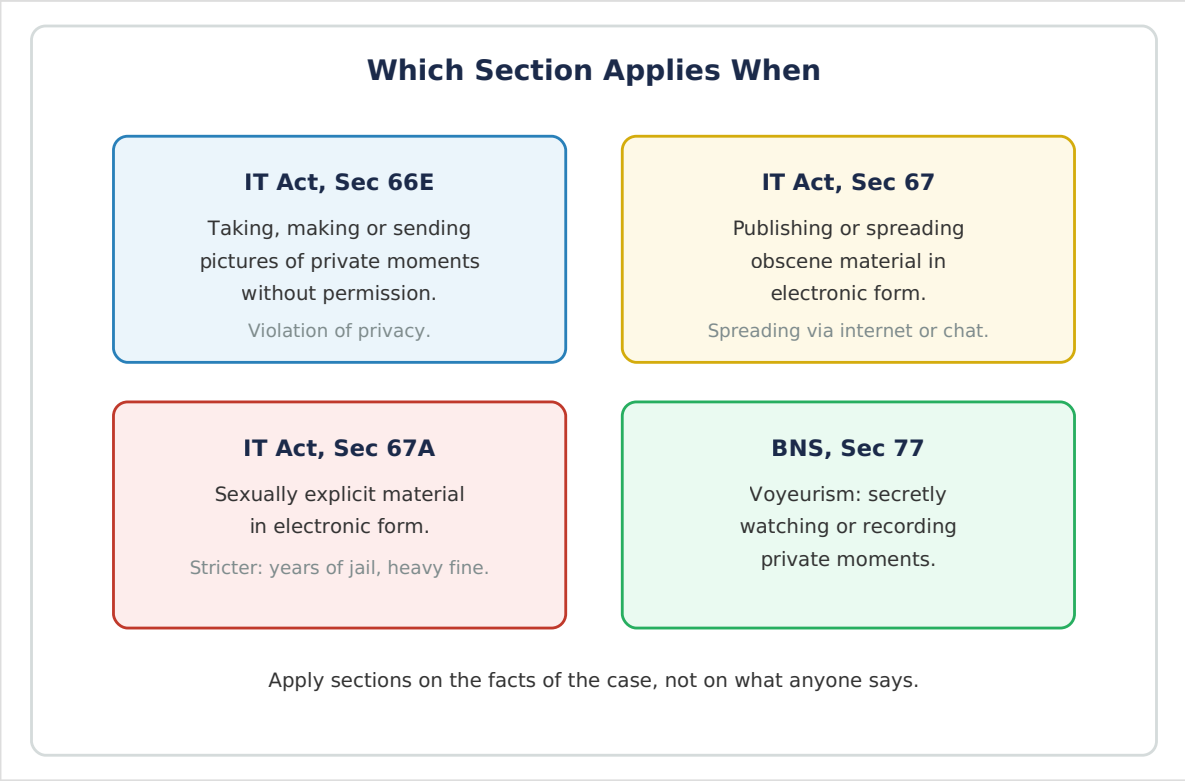
- **Never** ask a question that embarrasses her. Listen fully - do not interrupt
- Say it clearly: **the fault is not yours, the fault is the criminal's**
- Offer a **woman officer's presence** for the statement, if she wants it
- Keep her identity **secret everywhere** - name, face, address, nowhere

Karnataka's Guidelines and Zero FIR

Clear orders exist - **no officer needs to guess** what to do:

- Karnataka: **register the FIR immediately** on blackmail videos, sextortion, revenge pornography - no refusal
- Even if she once permitted the photo, **no delay** in registration - the law is gender-neutral
- Apply **all correct sections on the facts**, whether the complaint mentions them or not
- **Zero FIR:** crime in another station's area? Register here anyway - she will not run station to station

Which Section Applies When



- Four boxes, four crimes - **match the facts to the box**
- 67A is the strictest: years of jail, heavy fine
- Sections follow facts, **not the complainant's words**

The Sections in One Line Each

Correct sections make a strong case. Wrong sections invite the defence to attack:

- **66E:** capturing or sending private-moment images without permission - the privacy violation itself
- **67:** publishing or transmitting obscene material electronically - the spreading
- **67A:** sexually explicit material electronically - **stricter**, years of imprisonment plus heavy fine
- **BNS 77:** voyeurism - secretly watching or recording private moments

DPDP Act 2023: India's Data Law

The Digital Personal Data Protection Act 2023 runs on one principle: **consent first**.

- No company may use your personal data without **clear permission** - and only for the permitted purpose
- Your rights: **know** what is kept, get it **corrected**, demand **deletion** (right to erasure)
- Leaks must be reported to the Data Protection Board; negligence can draw fines up to **250 crore rupees**
- For you: evidence holding private data must be **guarded** - used only for the investigation, nowhere else

Your Rights Under the DPDP Act



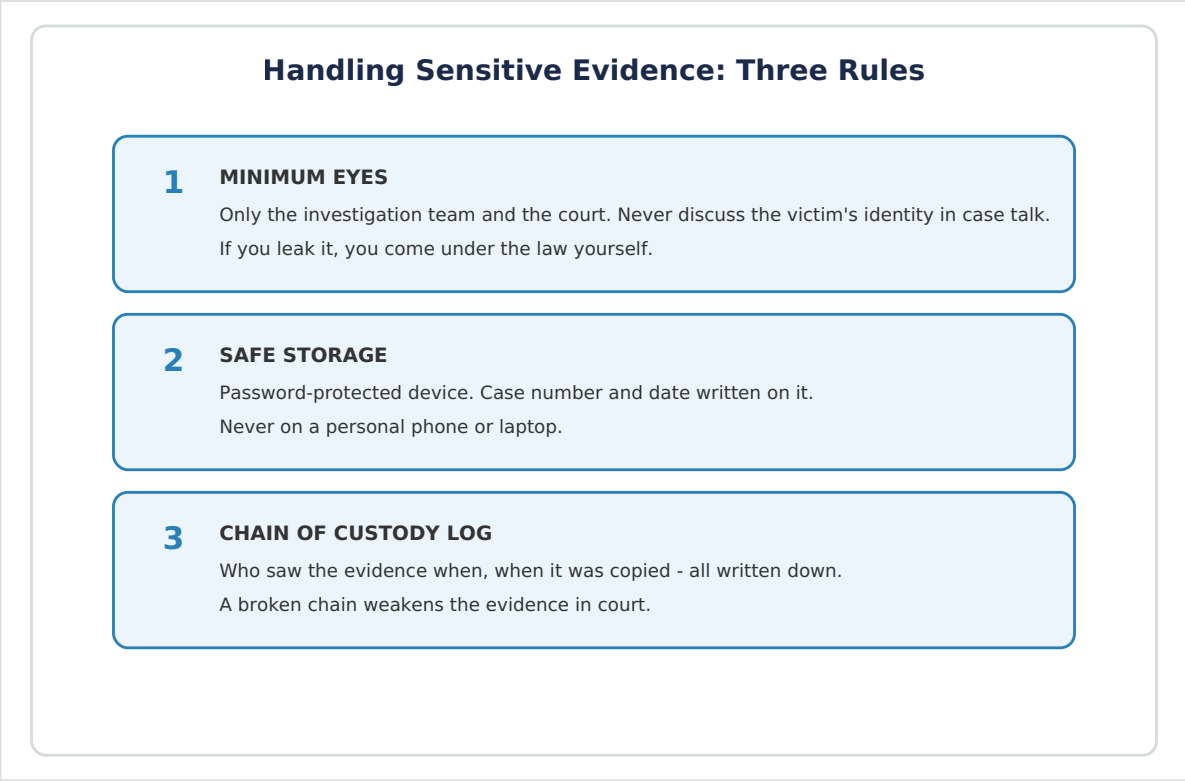
- Access, correction, erasure, grievance redressal
- Children under 18: **parents' permission** needed
- Teach victims these rights - **knowledge is protection**

GDPR: Europe's Law in One Paragraph

The internet has **no borders** - the criminal, the server and the victim can be in three countries. Know the world's baseline:

- **GDPR** (2018): your data is yours - collection needs clear permission, and you can demand deletion (**right to be forgotten**)
- Violations draw **massive fines**; most modern privacy laws, including India's DPDP Act, follow this thinking
- Cross-border cases need **international cooperation** - agency to agency, through proper channels
- A good investigator knows his own law **plus** the basics of the world's major privacy laws

Handling Sensitive Evidence



- Three rules: minimum eyes, safe storage, written log
- If **you** leak it, you face the law yourself
- Her trust depends on your **discipline**

Getting Content Removed: The Grievance Officer

Under the IT Rules, big platforms must keep a **grievance officer** - your legal door for takedowns:

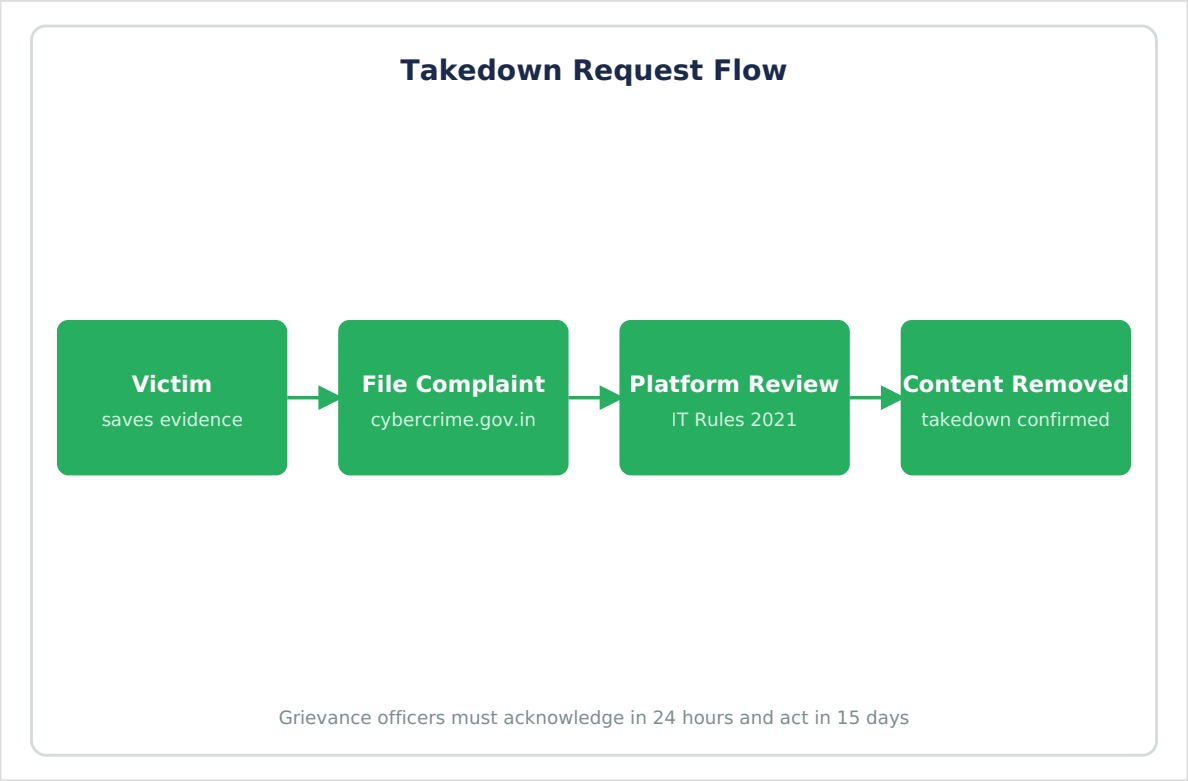
- Prepare first: **links plus screenshots** of the content, with date and time
- Write to the platform's reporting system or the grievance officer - state identity, state **no permission**
- The platform must reply in a **fixed time**; silence means escalate to cybercrime.gov.in
- Stand with the victim through it - and send a **legal notice** if needed

Google's Removal Form

Google removes **non-consensual explicit content from search results** through its legal troubleshooter:

- Give **exact content URLs** - not the homepage; image URLs help if you have them
- Add **search terms** (name, phone number) so Google finds the right results
- **Identity verification:** as authorised representative, attach your official ID plus her authorisation letter
- Describe in 2-3 lines: posted without permission, remove from results - and keep the **confirmation email**

The Takedown Flow



- Preserve, report, write, follow up - **same day**
- Removal takes time: **update her weekly**
- Never keep her in the dark - **silence breeds fear**

Report on Every Platform

Know every app's reporting path - so the victim gets **correct directions immediately**:

- **Instagram/Facebook:** three dots, Report - nudity/sexual activity or bullying/ harassment
- **X:** tweet menu, Report, abuse or harassment path; **YouTube:** three dots below video, Report, sexual content
- **WhatsApp:** chat, contact name, Report at the bottom; **Telegram:** long-press the message, Report
- Critical: **reporting removes content, the FIR punishes the criminal** - she must do both

Talking to the Family

She fears her family's blame more than the criminal. **With her permission**, bring the family in:

- Never narrate her full story to the family **without her permission** - tell only what is necessary
- Explain: **blame breaks her further** - and a broken victim stops cooperating
- Right now she needs **support, not questions** - family backing makes the case stronger
- Minor victim? Parents' involvement is essential - same method: **respect, patience, dignity first**

The First 24 Hours



- Five steps, day one: listen, FIR, sections, preserve, remove
- **Promptness decides** the whole case's direction
- Write day one's every action in the **case diary**

Case Diary and Follow-Up

One habit separates professionals from the rest: **write down every step, dated**.

- Five diary lines: victim contact and info; evidence preserved and where kept; letters sent and replies; removal-process stage; **next step with date**
- After every letter, fix a **follow-up date** - no reply in time means a reminder citing the first letter's date
- Call her **once a week** with the case status - delays explained honestly
- In court, **only what is written is proved** - the diary founds the charge sheet

Mistakes That Hurt Twice

In sensitive cases, a mistake wounds the victim **and** weakens the case:

- **Delaying the FIR** - 'come back tomorrow' tells her the system does not care
- Applying **weak or wrong sections** - the Madras High Court scolded police for exactly this
- Showing the evidence to **colleagues or friends** - a grave breach of trust, and possibly a crime
- Keeping her **in the dark** about progress - silence multiplies her fear

Real Case: High Court Ordered 41 Websites Cleaned

Chennai. Her private photos reached obscene websites through an acquaintance. FIR done, accused arrested - **but the photos stayed online**.

- She petitioned the **Madras High Court**. The court scolded the police: correct sections were not applied
- Then the order: police plus the IT Ministry to remove her photos from **41 websites** - and from any copies elsewhere too
- Source The New Indian Express
- Lessons: **right sections in the FIR**; catching the accused is not enough - **removal is part of justice**

Real Case: Karnataka's Strict Rules

The state government drew a **clear line** for every station:

- **Immediate FIR** on any complaint of non-consensual photo or video spreading
- Apply **all correct sections on the facts** - BNS 77 for voyeurism, IT Act 66E for privacy, 67/67A with 3 to 7 years
- Victim dignity and **Zero FIR** where needed - a ready roadmap for investigators
- Source IANS

Your Turn: Labs in This Module

Three labs that mirror **real weekly work**:

- **Lab 1:** Draft Google's non-consensual content removal form - every field, with a fictional sample
- **Lab 2:** Write the takedown email to a grievance officer - subject, facts, legal references, attachments
- **Lab 3:** Victim-intake roleplay - the first meeting done right, with the 5-point self-check
- Rule: **never file fictional data** in real forms - labs are for drafts only

Key Takeaways

If you remember nothing else from Module 17:

- Consent has **two layers** - taking is not spreading
- Her **dignity is job one**; the arrest is job two
- **66E, 67, 67A, BNS 77** - apply on facts, immediately
- Content **removal is investigation** - grievance officer, Google, platforms, court
- Handle evidence like it is **explosive** - because for her, it is
- Update her **every week** - written diary, honest words

Review Questions

- 1. The accused says 'she agreed to the photo'. Draft your two-sentence reply - and name the legal principle behind it.
- 2. A victim's photos are on 12 websites. List your day-one action plan in order, with the legal basis for each step.
- 3. Why does Google ask for identity verification? What do you attach as an authorised representative?
- 4. Write the four legal references for a grievance-officer takedown email.
- 5. Name three things never to say during victim intake - and explain the harm each one causes.

NEXT: MODULE 18

Adult Content-Related Crime Investigation

One perspective only: the victim's justice

Cyber Crime Investigator - Training Manual